RealPage, Inc. Corporate Privacy Policy

Print Privacy Policy

Effective Date: December 26, 2024

RealPage is committed to providing clear and concise information regarding our collection and processing of personal information by RealPage Inc. and our subsidiaries (collectively, "RealPage," "we," "us," or "our"). This Privacy Policy describes how RealPage collects, uses, and discloses personal data in connection with the provision of software and services, provides information regarding consumer rights under data privacy laws, and provides our "Notice at Collection" to California residents under California law. By accessing our website or utilizing RealPage software services (collectively, "RealPage Services"), you consent to the information collection and handling practices outlined in this policy.

NOTICE AT COLLECTION

The following notices are provided to California residents under California law:

(1) RealPage may collect personal information, including sensitive personal information, about consumers as described in Section II of this Privacy Policy.

(2) The purpose(s) for which the categories of personal information, including categories of sensitive personal information, are collected and used are described in Section V of this Privacy Policy.

(3) RealPage does not sell personal information collected through RealPage Services or (subject to the statements in the last paragraph of Section IX) share such personal information for cross-contextual behavioral advertising. RealPage may provide personal information to third parties as described in Section II of this Privacy Policy.

taking into account RealPage's ongoing business needs for the applicable information, any applicable legal needs for the information and/or requirements under applicable law.

I. The Role of RealPage – Processor vs. Controller

RealPage primarily collects and processes personal information as a "data processor" or service provider to property owners and management companies (collectively, "Clients"). Where RealPage serves in such capacity, our Clients are deemed the "data controllers" who determine the purpose and means of collecting and using this personal information.

In certain limited circumstances, RealPage offers services directly to consumers and serves as a data controller with respect to any personal information collected. Where RealPage serves in such capacity, consumers are provided with a privacy policy that is presented and accessible within each applicable service offering and/or its Terms of Use and linked below:

Direct-to-Consumer Services		
DepositIQ	eRenterPlan/eRenterDirect	Rewards
ResidentDirect - Propertyware	ResidentDirect - OneSite	

In addition, although RealPage provides the following non-direct-to-consumer products and services as a data processor or service provider for our Clients, consumers can refer to their separate RealPage privacy policies at the links provided below:

RealPage Services with Separate Privacy Policies		
AssetProtect	LeaseProtect	PolicyValidator
RealPage Deposit Insurance		

II. Personal Information Collection & Disclosure

requirements and settings. Personal information may pertain to Clients' residents, prospective renters, vendors, and employee end users of RealPage Services.

RealPage may provide personal information to third parties for business purposes under limited circumstances, including service providers and vendors that support or integrate with the RealPage Services described in this policy (see "Disclosure" column in the chart below). RealPage only discloses personal information to the extent reasonably necessary to support RealPage Services requirements, or for the third-party vendors or service providers to perform the services on our or our Clients' behalf. We do not permit third party vendors or service providers to use or disclose your personal information except for the purpose of providing the services we request of them. However, please note that RealPage does not maintain direct control over the privacy policies and practices of Clients or any other third-party companies, agents, or contractors.

In particular, RealPage Services collect, and have collected within the last twelve (12) months, the following categories of personal information from or on behalf of our Clients regarding their residents, prospects, vendors, and/or employee end users.

Note: Some personal information examples included in this chart may overlap with multiple categories. The collection of certain types of personal information listed in the examples (e.g., racial or ethnic origin, national origin, citizenship, immigration status, language, religion, etc.) is product- and/or settings-specific and are not necessarily collected by all Clients.

		Disclosure	
Category	**Examples**	**Business Purposes**	**Sales/Marketing**
Identifiers	Name, alias, date of birth, mailing address, email address, IP address, phone number, Social Security number, driver's license number number/image, state identification card, passport number, or other similar personal identifiers associated with the residential and commercial real estate leasing activities.	Service providers, vendors, subsidiaries	N/A

Category	Examples	Business Purposes	Sales/Marketing
Sensitive Personal Information	Social Security number, driver's license number/image, state identification card, or passport number; Account log-in, financial account, debit card, or credit card number in combination with any required security or access code, password, or credentials allowing access to an account; Precise geolocation for Bluetooth-enabled application connectivity; Racial, ethnic or national origin, citizenship or immigration status; Processing of biometric information for the purpose of uniquely identifying a consumer; Personal information collected and analyzed concerning a consumer's health (senior living). *Note: Some of these examples are not considered "sensitive personal information" under all states' privacy laws.*	Service providers, vendors, subsidiaries	N/A
Personal information categories listed	Name, electronic signature, Social Security number, physical characteristics or description,	Service providers,	N/A

Category	Examples	Business Purposes	Sales/Marketing
in the California Customer Records statute (Cal. Civ. Code § 1798.80(e))	address, telephone number, passport number, driver's license or state identification card number, insurance policy number, employment status, employment history, bank account number, credit card number, debit card number, or any other financial information, medical information, and similar personal identifiers associated with the residential and commercial real estate leasing activities.	vendors, subsidiaries	
Protected classification characteristics under California or federal law	Age (40 years or older), race, color, national origin, citizenship, marital status, familial status, medical condition, physical or mental disability, gender, gender identity, veteran/military status, status as a recipient of housing assistance (e.g., vouchers) and similar personal identifiers associated with the residential and commercial real estate leasing activities.	Service providers, vendors, subsidiaries	N/A
Commercial information	Rental ledger data and payment history, record of applications and services utilized, customer support records and communications, and similar personal identifiers associated with the residential and commercial real estate leasing activities.	Service providers, vendors. subsidiaries	N/A

Category	Examples	Business Purposes	Sales/Marketing
Biometric information	Voice call recordings from product services, contact center, and similar call center and support operations; and Data generated from photo IDs and selfie videos and used to uniquely identify an individual.	Service providers. vendors, subsidiaries	N/A
Internet or other similar network activity.	Information pertaining to an individual's interaction with a RealPage website, application, or service.	Service providers, vendors, subsidiaries	N/A
Geolocation data	Physical location for localized search/application functionality or Bluetooth-enabled application connectivity	Service providers vendors, subsidiaries	N/A
Sensory data	Voice call recordings from product services, contact center, and similar call center and support operations.	Service providers, vendors, subsidiaries	N/A
Professional or employment-related information	Current or past job history and income, and similar personal identifiers associated with the residential and commercial real estate leasing activities.	Service providers, vendors, subsidiaries	N/A

Category	Examples	Business Purposes	Sales/Marketing
Education Information	Status as a student	Service providers, vendors, subsidiaries	N/A
Inferences drawn from other personal information	Profile reflecting a person's preferences, characteristics, predispositions, behaviors, and personal identifiers associated with the residential and commercial real estate leasing activities.	Service providers, vendors, subsidiaries	N/A

III. Personal Information Exceptions

Personal information does not include:

- Publicly available information.
- De-identified or aggregated consumer information.
- Information excluded from state privacy law scope, such as:
  - health or medical information covered by the Health Insurance Portability and Accountability Act of 1996 (HIPAA); and
  - personal information covered by certain sector-specific privacy laws, including the Fair Credit Reporting Act (FCRA), the Gramm-Leach-Bliley Act (GLBA) or California Financial Information Privacy Act (FIPA), and the Driver's Privacy Protection Act of 1994.

IV. Personal Information Sources

RealPage collects the categories of personal information listed above from the following sources:

- Resident, prospective renter and vendor personal information is collected (i) from Clients' residents, prospects and vendors during enrollment in or utilization of RealPage Services offered on behalf of Clients, (ii) from Clients via direct input into RealPage Services or integration with Client software systems and third party service providers, and (iii) indirectly

- Client and Client employee end user personal information is collected (i) from Client's employees during setup of RealPage Services user accounts, (ii) from Client during activation and implementation of RealPage Services; and (iii) from website analytics software and services integrated with RealPage Services.

V. Personal Information Use & Processing

In providing the suite of RealPage Services, RealPage primarily acts as a service provider or data processor under contract to our Clients. As a service provider or data processor, RealPage does not control any of the personal information we process on behalf of our Clients. Our Clients are the data controllers who collect and control all such personal information, and RealPage is required to provide our products and services in accordance with Clients' contractual provisions and instructions regarding data collection, privacy, processing, and security.

Accordingly, we may use or disclose the personal information we collect on behalf of our Clients for one or more of the following purposes:

- To fulfill the purpose for which the personal information was collected and provide the requested RealPage Services.
- To integrate with apartment community services offered by RealPage or third-party service providers contracted by Clients.
- To distribute communications and legally required notices regarding the status of RealPage Services via phone, email, and SMS text
- To provide RealPage Services maintenance, enhancement, research, development, security, support, and website optimization.
- To maintain compliance with federal and state laws related to software-as-a-service, background screening, financial institutions, and money services businesses.
- To create, maintain, customize, and secure RealPage Services user accounts.
- To respond to law enforcement requests and as required by applicable law, court order, or governmental regulations.
- To exercise or defend legal claims.
- To evaluate or conduct a merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of RealPage's assets, whether as a going concern or as part of bankruptcy, liquidation, or similar proceeding, in which personal information held by RealPage is among the assets transferred.

RealPage will not collect additional categories of personal information or use the personal information we collected for materially different, unrelated, or incompatible purposes without providing you notice. Additionally, RealPage processing of sensitive personal information is limited

For information about how your property manager uses and discloses your personal information, please contact your property manager and/or refer to its privacy policy.

VI. Personal Information Rights and Choices – State Privacy Rights

Certain state jurisdictions provide their legal residents with specific rights regarding their personal information. Each right includes the ability to make a specific consumer request and corresponding obligation of the receiving party to (i) verify the identity of the requestor and (ii) respond in accordance with statutory guidelines. This section describes your rights and, along with Section VII below, explains how to exercise those rights if you are a resident of one of these states.

PLEASE NOTE: Under most circumstances, any request regarding your privacy rights should be submitted to the property manager that operates your apartment community or rental property. As stated above, RealPage is merely a service provider or data processor for our Clients, and we do not control the collection, use, and disclosure of your personal information when we act in that capacity. Our role as a service provider or data processor is to assist our Clients, upon their request, in responding to requests submitted to them by consumers. **However, for our direct-to-consumer and other products identified in Section I, you may submit privacy rights requests in accordance with their respective privacy policies.**

Accessing and Updating/Correcting Personal Information

You have the right to confirm whether a data controller is processing your personal data and, if so, to access such personal data. You may access and update or correct your information (as needed) by logging into your RealPage Services account or contacting your property manager. If you require verification that your requested changes have been completed, and such verification is not readily displayed in your RealPage Services account, you may request confirmation at the email address listed below (See Section XVII "Contact Us").

Data Portability and Access to Specific Information Regarding Personal Information Collection, Use & Disclosure

You have the right to request a copy of the personal information collected about you in a readily useable format that is transferable to other entities, to the extent technically feasible (frequently known as "data portability"). If you are a California resident, you also have the right to request a disclosure summarizing the collection, use, sale, sharing and disclosure to third parties of your

manager, the personal information subject to the request will be produced in a portable format from our systems and transmitted to you by your property manager.

Deletion of Personal Information

You have the right to request the deletion of any of your personal information that was collected and retained in connection with RealPage Services, subject to certain exceptions. You can request data deletion by contacting your property manager. If your request is verified and granted by your property manager, the personal information subject to the request will be deleted or permanently de-identified in our systems. RealPage will not attempt to re-identify any personal information de-identified through this process or any other de-identified information in our possession

A verified deletion request may be denied if retaining the information is permitted under the applicable law and is reasonably necessary for your property manager, RealPage, or our service providers or contractors to

1. Complete the transaction for which we collected the personal information, fulfill the terms of a written warranty or product recall conducted in accordance with federal law, provide the RealPage Services requested or reasonably anticipated by you within the context of our or your ongoing business relationship with your property manager, or otherwise perform our contract with your property manager.

2. Help to ensure security and integrity to the extent the use of your personal information is reasonably necessary and proportionate for those purposes.

3. Debug RealPage Services to identify and repair errors that impair existing intended functionality.

4. Exercise free speech, ensure the right of another consumer to exercise that consumer's free speech rights, or exercise another right provided for by law.

5. Engage in public or peer-reviewed scientific, historical, or statistical research that conforms or adheres to all other applicable ethics and privacy laws, when the information's deletion is likely to render impossible or seriously impair the ability to complete such research, if you previously provided informed consent.

provided the information.

7. Comply with laws, regulations, statutes, codes, ordinances, or other legal obligations.

VII. How to Submit a Consumer Privacy Request

Under most circumstances, any request regarding your privacy rights should be submitted to the property manager that operates your apartment community or rental property. As stated above, RealPage is merely a service provider or data processor for our Clients, and we do not control the collection, use, and disclosure of your personal information when we act in that capacity. Our role as a service provider or data processor is to assist our Clients, upon their request, in responding to requests submitted to them by consumers. **However, for our direct-to-consumer products and the four other RealPage Services with separate privacy policies identified in Section I, you may submit privacy rights requests in accordance with their respective privacy policies.**

Only you (or someone legally authorized to act on your behalf) may make a verifiable consumer request related to your personal information. You may also make a verifiable consumer request on behalf of your minor child.

Certain state privacy laws may limit the number of requests for access and/or portability that you can make in a 12-month period (e.g., two under California law). Other states may require one free response per consumer in a 12-month period but allow the data controller to either decline to act on a request or charge a reasonable fee to cover the administrative costs of responding to requests that are manifestly unfounded, excessive or repetitive.

The verifiable consumer request must:

- Provide sufficient information that allows confirmation of your identity as the person whose personal information was collected (and, if applicable, the authority and identity of an authorized representative).
- Describe your request with sufficient detail to allow the data controller to properly understand, evaluate, and respond to it.

VIII. Consumer Request Responses and Timelines

If your property manager notifies RealPage of a verified and granted consumer request, we will endeavor to respond to the request within forty-five (45) days of its receipt. If we require

will inform your property manager of the reason and extension period in writing.

RealPage does not charge fees to process or respond to a verifiable consumer request unless it is excessive, repetitive, or manifestly unfounded. If we determine that the request warrants a fee, we will notify your property manager why we made that decision and provide them with a cost estimate before completing your request.

If we are unable to assist the Client in the fulfillment of a verifiable consumer request, we will provide your property manager with an explanation of the reason(s) for our inability to do so. If the applicable state law affords you the right to appeal a denial, you may appeal the decision in accordance with the process established by your property manager.

IX. Personal Information Sales, Sharing, Targeted Advertising and Profiling – Opt Out Rights

RealPage does not sell personal information collected through RealPage Services or use such information for targeted advertising or profiling in furtherance of decisions that produce legal or similarly significant effects concerning consumers and no such activity has occurred in the prior 12 months. Subject to the statements in the last paragraph of this section, RealPage does not share personal information collected through the RealPage Services for cross-contextual behavioral advertising and no such activity has occurred in the prior 12 months.

If RealPage changes its practices and engages in the sale or sharing of personal information or in targeted advertising or profiling as regulated by law, we will provide advance notification to impacted individuals and offer the ability to opt in/opt out in accordance with regulatory requirements.

RealPage utilizes cookies and tracking technologies as set forth in the Cookie Policy. Under some circumstances, these technologies may be deemed a “sharing” of personal information under applicable privacy laws. Where this is or may be the case, such as on our RealPage.com website, RealPage provides a Cookies Settings allow you to opt out and customize the cookies presented.

X. Non-Discrimination

We will not discriminate against you for exercising any of your privacy rights. Unless permitted by law, we will not engage in any of the following practices in response to your exercise of privacy rights:

or other benefits, or imposing penalties.

- Provide you a different level or quality of goods or services.
- Suggest that you may receive a different price or rate for goods or services or a different level or quality of goods or services.

XI. Other California Privacy Rights

California Employees, Applicants & Independent Contractors – The California Consumer Privacy Act, as amended by the California Privacy Rights Act of 2020 ("CCPA") also prohibits businesses from retaliating against an employee, applicant for employment, or independent contractor for exercising their rights under the CCPA.

The State of California also grants California residents privacy rights via laws unaffiliated with the CCPA. Those rights include the following:

California's "Shine the Light" law (California Civil Code §1798.83) permits California residents to request certain information regarding our disclosure of personal information to third parties for their direct marketing purposes. To make such a request, please send an email to privacy@realpage.com.

California's Investigative Consumer Reporting Agencies Act (ICRAA – California Civil Code §§ 1786.10 -1786.40) requires certain privacy disclosures related to investigative consumer reporting agencies' operations, including the following:

- **Personal Information Disclosure: United States or Overseas**

Personal information collected in connection with the provision of consumer reports and investigative consumer reports through our Resident Screening products (LeasingDesk and On-Site) is securely stored on servers located within the United States. This information may be made available to employees of RealPage or its affiliated companies who are located outside of the United States or its territories, solely for the purpose of performing their job duties and in accordance with applicable laws.

- **Additional Information Regarding RealPage Resident Screening Privacy Practices**

To obtain additional information about our privacy practices and policies in the event of a compromise of your personal information collected via our Resident Screening products, you can contact us via:

Email: privacy@realpage.com

Phone: 1-866-934-1124

XII. Cookies, Web Beacons, and Other Technologies – Do Not Track

When you access RealPage Services or our website, our servers may place small text files ("cookies") on your computer for recordkeeping purposes. Among other things, cookies enable us to gather information about your activity on our website for the purposes of improving your online experience, establishing secure user accounts, remembering your preferences and settings, and for other similar customization purposes.

In addition to cookies, the RealPage Services and our website may utilize web beacons, clear gifs, or other technologies to gather information on how users interact with and utilize various features. For example, these technologies can identify popular pages, viewing patterns, click-through, conversion rates, and other information that can be used to improve, monitor, and operate our websites, products, and services.

A detailed summary of our cookie and similar technology usage is set forth in our Cookie Policy.

Some web browsers have a "Do Not Track" feature. This feature lets you tell websites you visit that you do not want to have your online activity tracked. These features are not yet uniform across browsers, and our sites are not currently set up to respond to those signals. Most internet browsers provide controls that allow users to directly manage or disable the placement and usage of cookies on their computer. Please note that disabling cookies may deactivate or otherwise restrict certain features of RealPage Services or our website.

When using our mobile applications, including, but not necessarily limited to, Chirp and CommunityConnect, you have the option to opt out of the collection and use of location information via the settings within the mobile application. If you choose to opt out of the collection and use of location information, the portion of the mobile application that relies upon location-based services will be disabled and any associated functionality and features will be deactivated.

XIII. Third Party Links to Other Sites

privacy policies, terms of use, and related notices or disclosures regarding information handling practices. We cannot be responsible for the information handling practices of independent parties and encourage you to review their practices prior to information disclosure.

RealPage Services that offer mobile applications do not include third-party ad partners, campaigns, or personalized ad delivery.

XIV. Data Security

RealPage implements and maintains appropriate physical, administrative, technical and organizational measures to protect the information we process against unauthorized or unlawful access, use or disclosure, and against accidental loss, damage, alteration or destruction. Under our security policies and practices, access to personal information is restricted and authorized only for those who have a business need for such access. RealPage strives to protect the personal information that we process; however, no security program is 100% secure and we cannot guarantee that our safeguards will prevent every unauthorized attempt to access, use, or disclose personal information. We maintain security incident response policies and procedures to handle incidents involving unauthorized access to personal data we process.

XV. Children's Online Privacy

RealPage Services do not target or attract the attention of children under the age of 13 for the online collection of personal information. RealPage does not knowingly “sell” or “share” (as defined by applicable law) the personal information of consumers under the age of 16 in connection with the RealPage Services.

XVI. Changes to Our Privacy Policy

RealPage reserves the right to amend this Privacy Policy at our sole discretion at any time. When we make changes to this Privacy Policy, we will post the updated content to our applicable websites and services along with the effective date of the change. Your continued use of RealPage Services following the posting of changes constitutes your acceptance of such changes.

XVII. Contact Us

If you have any questions or concerns about this Privacy Policy or its implementation, you may contact us via the following methods:

RealPage, Inc.
Attn: Privacy (Legal)
2201 Lakeside Blvd.
Richardson, TX 75082

OR Via email at: privacy@realpage.com

Prior Versions Archive

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